

26VECV02317 26VECV02317

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-05

Motion: DEFENDANT CLUB DEMONSTRATION SERVICES, INC.'S MOTION TO COMPEL ARBIRATION AND STAY PROCEEDINGS

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Case Number: 26VECV02317 Hearing Date: August 5, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

AHRON

PIELL, an individual;

Plaintiff,

vs.

CLUB DEMONSTRATION SERVICES, INC., a Connecticut

Corporation; ABNER MORALES, an individual; and DOES 1 to 10, inclusive;

Defendants.

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CASE

NO: 26VECV02317

[TENTATIVE]

ORDER RE: DEFENDANT CLUB DEMONSTRATION SERVICES, INC.'S MOTION TO COMPEL
ARBIRATION AND STAY PROCEEDINGS

DEPT.

I

HEARING

DATE: AUGUST 5, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: APRIL 20, 2026

TRIAL

DATE: NONE

I.

BACKGROUND

On April 20, 2026, Plaintiff Ahron Piell ("Plaintiff") filed a complaint against Defendants Club Demonstration Services, Inc. ("Club Demonstration"), Abner Morales ("Morales"), and Does 1 to 10 alleging nineteen causes of action: (1) disability discrimination; (2) retaliation for protected activity; (3) harassment and hostile work environment; (4) failure to prevent discrimination, harassment, and retaliation; (5) failure to provide reasonable accommodation; (6) failure to engage in the interactive process; (7) wrongful termination in violation of public policy; (8) whistleblower retaliation; (9) retaliation for exercising labor code rights; (10) intrusion into private affairs; (11) failure to provide meal periods; (12) failure to provide rest periods; (13) failure to timely pay wages when due; (14) failure to timely pay final wages at separation; (15) negligent hiring, supervision, and retention; (16) failure to provide accurate itemized wage statements; (17) failure to maintain required payroll and employment records; (18) failure to provide employment records upon request; and (19) unfair business practices.

On July 10, 2026, Club Demonstration filed the instant motion to compel arbitration and stay proceedings.

On July 23, 2026, Plaintiff filed his opposition.

On July 29, 2026, Club Demonstration filed its reply.

II.

LEGAL STANDARD

In deciding a motion to compel arbitration, trial courts must first decide whether

an enforceable arbitration agreement exists between the parties and then determine the second gateway issue of whether the claims are covered within the scope of the agreement. (See *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.)(See also *Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F. 3d 1126, 1130 [“The court’s role under the [Federal Arbitration Act (“FAA”)] is therefore limited to determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue.”]. “The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 64 Cal.Rptr.2d 903, 915-16.) “In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (*Id.* at 916.) No jury trial is available for a petition to compel arbitration. (*Ibid.*)

Accordingly,

under both the FAA and California Law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (*Winter v. Window Fashions Professions, Inc.* (2008) 166 Cal.App.4th 943, 947.)

III. DISCUSSION

Evidentiary Objections

As a preliminary matter, Club Demonstration’s July 29, 2026, evidentiary objections to the Takash declaration are overruled in their entirety. Takash, as Plaintiff’s counsel, has personal knowledge of Club Demonstration’s pre-suit communications and general preservation of right to compel arbitration. (See Cal. Evid. Code § 702.)

Existence of a Valid Arbitration Agreement

Club

Demonstration proves the existence of a valid arbitration agreement with Plaintiff.

Plaintiff's

claims arise from his employment with Club Demonstration as a Sales Associate and Sampler. (See Complaint at ¶¶ 11-31.) At the time of his onboarding, Plaintiff completed a Mutual Agreement to Arbitrate Claims (hereinafter the "Agreement"). (Shaddock Decl. at ¶ 7.) Completion of the Agreement was tracked through an electronic Applicant Tracking System called Paradox. (Id. at ¶ 8.) "Paradox is secured through a user-based permission process which allows only certain employees, including [Club Demonstration]'s High Volume Talent Acquisition Pre-hire Onboarding Team and Paradox system administrators, to access and view candidate or employee documentation in the system, including those documents completed in the onboarding process." (Ibid.) Paradox has various secure electronic verification methods to ensure only a prospective candidate can access their onboarding portal. (Id. at ¶¶ 10-13.) Club Demonstration has provided evidence that Plaintiff completed the Agreement through his secure Paradox onboarding portal. (See Shaddock Decl. Exhs. A-B and D.)

The

Agreement provides, under a bold header "Arbitration Agreement Acknowledgement," the following:

"

. . [Y]ou and Advantage Sales & Marketing LLC (hereinafter the 'Company' agree to

resolve

in binding arbitration all claims or controversies ('Claims') that the Company

may

have against you, or that you (and no other party) may have against any of the

following:

(1) the Company, (2) the Company's parents, subsidiaries, and affiliated

entities,

including but not limited to Daymon Worldwide Inc. (hereinafter 'Affiliated

Entities'),

(3) the Company's and its Affiliated Entities' benefit plans or the plans'

sponsors,
fiduciaries, administrators, affiliates and agents, (4) all clients and/or
customers

of
the Company or its Affiliated Entities, (5) the officers, directors, employees
or agents

of
the Company, the Affiliated Entities, and clients and/or customers, in their
capacity as

such
or otherwise, and (6) all successors and assigns of any of them. Under this

Agreement,
any Claims will be decided by an arbitrator rather than by a judge or jury.

Both
you and the Company may seek to enforce this Agreement.”

(See
Shaddock Decl. Exh. E.)

Notably,
Club Demonstration is a “wholly-owned subsidiary of Daymon Worldwide Inc.” (See
Shaddock Decl. at ¶ 5.) Therefore, Club Demonstration proves the existence
of a valid arbitration agreement with Plaintiff.

In
opposition, Plaintiff argues that Club Demonstration’s “entire standing theory
depends on the assertion that [Club Demonstration] is an ‘Affiliated Entity’ of
Advantage. But [Club Demonstration] submits no corporate records, ownership
documents, Secretary of State records, parent-subsidary documents, or other
competent proof establishing the relevant corporate relationship.” (Opposition
at 4:10-15.) However, Plaintiff misstates the burden of evidence regarding arbitration
agreements. Club Demonstration need only establish the existence of a valid
arbitration agreement by a “preponderance of the evidence.” (Engalla v.
Permanente Med. Grp. Inc. (1997) 15 Cal.4th 951, 972.) Here, Club

Demonstration submits the declaration of Katy Shaddock, Vice President of Talent Acquisition for Advantage Sales & Marketing LLC, who declares that Club Demonstration is indeed an affiliated entity. (See Shaddock Decl. at ¶¶ 3 and 5.) Therefore, Club Demonstration meets its burden of proof.

Next,

Plaintiff argues that “[t]he agreement expressly excludes ‘Any claim involving your rights that currently is pending in litigation in in any forum.’

Plaintiff’s claims are currently pending in this Court.” (Opposition at 5:2-5.)

However, a plain reading of the Agreement indicates that this clause applies to pending claims at the time the Agreement was signed. Otherwise, the Agreement itself would be made illusory since, as Club Demonstration notes, “[e]very motion to compel arbitration is, by definition, filed after a claim has been brought in litigation.” (Reply at 6:12-20.) This argument fails.

Next,

Plaintiff argues that Club Demonstration waived its right to arbitration because “Plaintiff’s November 16, 2025 demand letter requested that [Club Demonstration] identify and produce any arbitration agreement within twenty-one days. [Club Demonstration] did not produce the agreement.” (Opposition at 5:15-18.) However, Plaintiff provides no authority to support his argument that this nonaction constitutes waiver. Additionally, the party asserting waiver “bears the substantial burden of proof” and waiver of arbitration “is not to be lightly inferred.” (St. Agnes Med. Ctr. v. PacifiCare of Cal. (2003) 31 Cal.4th 1187, 1195.) This argument as well fails.

Finally,

Plaintiff argues that the Agreement’s “Bellwether Arbitration Procedures” are unconscionable because “[t]hey permit the Company to delay employees’ claims whenever more than ten similar cases exist.” (Opposition at 6:9-19.) However, as Club Demonstration argues, the Bellwether Provision is not at issue in this action because “Plaintiff offers no evidence that ten or more substantially similar cases are pending. The bellwether provisions are therefore not triggered, and Plaintiff’s challenge to them is premature and speculative.” (Reply at 9:6-11.)

Based

on the foregoing, Club Demonstration proves the existence of a valid arbitration agreement with Plaintiff.

Applicability

Next, Club Demonstration shows that the arbitration agreement applies to Plaintiff's claims.

As discussed supra, the arbitration agreement applies to any disputes arising from Plaintiff's employment. (See Shaddock Decl. at Exh. E [Agreement].) Therefore, the arbitration provision applies to Plaintiff's claims.

III. CONCLUSION

Based on the foregoing, the instant motion to compel arbitration is GRANTED and the action is stayed pending arbitration.

Moving party to give notice.

Dated: August
____, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court